Quarterly report: Q3 2026

Australia's merger regime, 1 July 2026 – 30 September 2026

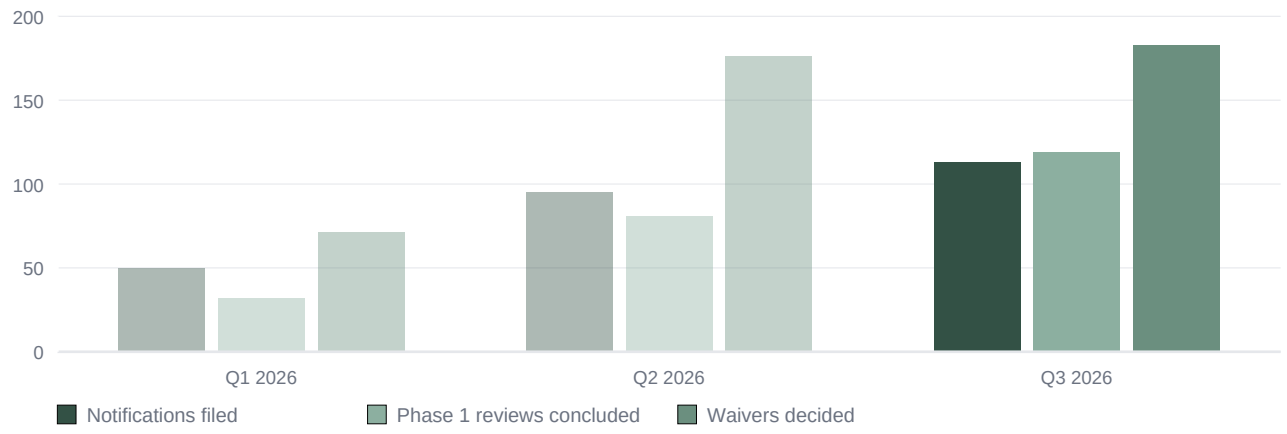
NOTIFICATIONS FILED	WAIVERS DECIDED	PHASE 1 MEDIAN	WAIVER MEDIAN
113	**183**	**18** business days	**17** business days
+19% on Q2 2026	+4% on Q2 2026	1 day slower than Q2 2026	5 days slower than Q2 2026

THE QUARTER IN BRIEF

- 113 notifications filed, up 19% on Q2 2026, and 183 waiver applications decided, up 4% on Q2 2026.
- Phase 1 reviews concluded in a median 18 business days, 1 day slower than Q2 2026; waivers in 17, 5 days slower than Q2 2026.
- Notifications filed had spent an estimated median 16 business days in pre-notification, 1.5 days longer than Q2 2026.
- 96% of waivers were granted and 97% of phase 1 reviews ended in approval.
- 3 matters referred to phase 2; 5 phase 2 reviews concluded (3 not approved, 2 assessment ceased).
- 1 Tribunal review opened: Coles (ACT 1 of 2026); 1 open at quarter end.

Volume by quarter

Waivers reach the ACCC's register only once decided, so they are counted when decided



Waivers

CLEARANCE RATE

96%

176 of 183 approved

Average when granted	**16.1 business days**
Average when refused	**18.9 business days**
Refused	**7**

3 of 7 refused waivers have since been re-filed as a notification.

Notifications – phase 1

CLEARANCE RATE

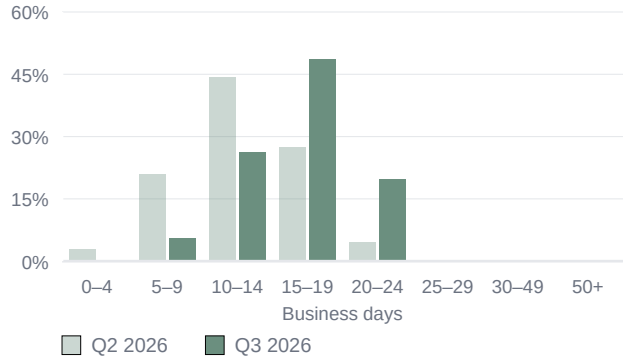
97%

116 of 119 approved

Average when approved	**20.4 business days**
Average when referred	**42 business days**
Referred to phase 2	**3**
Ceased in phase 1	**2**

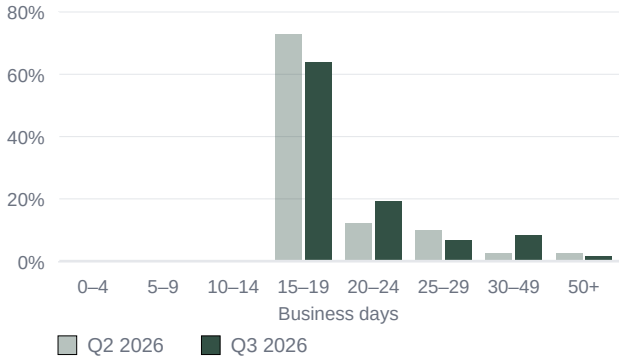
Waiver timing

Share of decisions by business days taken – median 17 business days, 90% within 21 business days



Phase 1 timing

Share of decisions by business days taken – median 18 business days, 90% within 33 business days



Pre-notification

Estimated time the 113 notifications filed this quarter spent with the ACCC before filing, as a share of those notifications

MEDIAN

16 business days

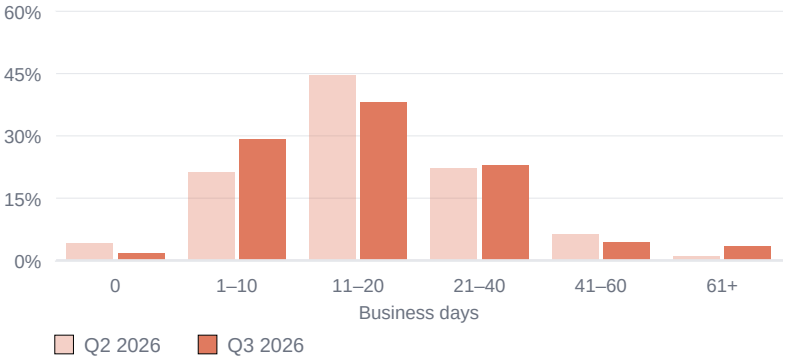
1.5 longer than Q2 2026

AVERAGE

19.2 business days

90% WITHIN

36 business days



Where the deals were

Notifications filed and waivers decided, by ANZSIC division

Financial and Insurance Services	129
Professional, Scientific and Technical Services	78
Manufacturing	77
Retail Trade	43
Wholesale Trade	38

Tribunal reviews

Applications to the Australian Competition Tribunal for review of an ACCC determination, live at some point in the quarter

1 lodged · **0** concluded · **1** open at quarter end

MATTER	MERGER	APPLICANT	STATUS
ACT 1 of 2026 lodged 15 Jul 2026	Coles – supermarket and liquor site in Kalgoorlie, WA	Coles	Lodged this quarter; open at quarter end; hearing listed for 9 Nov 2026

Beyond phase 1

Phase 2 referrals and outcomes, public benefit applications, and Tribunal and court reviews

01 Jul 2026	**Not approved**	Coles – supermarket and liquor site in Kalgoorlie, WA
02 Jul 2026	**Referred to phase 2**	Saipem S.p.A - Subsea7 S.A.
10 Jul 2026	**Assessment ceased**	Trescal – TR Calibration
15 Jul 2026	**Tribunal review sought**	Coles – supermarket and liquor site in Kalgoorlie, WA · Coles
16 Jul 2026	**Phase 1 review ceased**	Regis Resources - Vault Minerals
17 Jul 2026	**Federal Court review sought**	Coles – supermarket and liquor site in Kalgoorlie, WA · Coles
17 Jul 2026	**Referred to phase 2**	Zoetis – Neogen Genomics Business
07 Aug 2026	**Not approved**	MicroStar Logistics - Konvoy
18 Aug 2026	**Referred to phase 2**	Vets Central – Hills Veterinary Centre
26 Aug 2026	**Phase 1 review ceased**	Journey Beyond - SeaLink Rottnest
28 Aug 2026	**Assessment ceased**	Vets Central – Hills Veterinary Centre
23 Sep 2026	**Not approved**	Insurance Australia Group – RAC Insurance